

M/s Kisan Chilling Plant v. Appellate Authority/Divisional Commissioner

Allahabad High Court · Division Bench · 13 October 2011 · WRIT - C No. 58757 of 2011 · **Appellate authority directed to decide pending 6.8 appeal in 30 days.**

HEADNOTE

Where an assessment appeal under the U.P. Electricity Supply Code, 2005 has been filed, Clause 6.8(d)(V) obliges the appellate authority to decide it within thirty days by a speaking order. The Court directed the Divisional Commissioner, Bareilly, to hear the pending appeal with fullest opportunity and dispose of it by a reasoned speaking order within thirty days of communication.

FACTUAL SUMMARY

After an assessment and consequent disconnection, the petitioner's earlier writ was disposed of on 27 July 2011 with a direction to deposit the assessed amount or prefer an appeal. The petitioner filed an appeal on 24 August 2011, within thirty days of that order. The Divisional Commissioner, Bareilly, as appellate authority, neither entertained the appeal nor fixed a date for hearing, prompting this second writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(d)

appeal-disposal-timeline

HOLDING

Clause 6.8(d)(V) of the U.P. Electricity Supply Code, 2005 obliges the appellate authority to decide an assessment appeal within thirty days by a speaking order. Where the Divisional Commissioner had neither entertained the appeal nor fixed a date, the Court directed that authority to hear the appeal with fullest opportunity of hearing and dispose of it by a reasoned speaking order within thirty days of communication of this order. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment Where an assessment appeal under the U.P. Electricity Supply Code, 2005 has been filed, Clause 6.8(d)(V) obliges the appellate authority to decide it within thirty days by a speaking order.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF ASSESSMENT AND DISCONNECTION

Writ disposed by directing the Clause 6.8 appellate authority to decide the already-filed appeal; assessment and disconnection were not examined on merits. ¶ 1